

Court No. - 3

Case :- WRIT - C No. - 24454 of 2022

Petitioner :- Ms Natural Water Industries

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shishir Kumar

Dwivedi, Mrityunjay Khare

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Saurabh Srivastava, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel and Sri Udit Chandra, learned counsel appearing for the respondents no. 2 and 3.

2. This petition has been filed with the following main prayer:-

"I. Issue a writ, order or direction in the nature of mandamus directing the Executive Engineer, Purvanchal Vidhyut Vitran Nigam, Limited Khand-1, Ghazipur (Respondent No.03) to restore the electric connection of the petitioner as soon as possible by way of deciding the representation dated 02.08.2022 within stipulated period.

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3. It is the case of the petitioner that it is a Small Scale Industry registered on 11.11.2016 under the Ministry of Micro, Small and Medium Enterprises for manufacture and supply of refined water for drinking. The petitioner's company had applied for commercial electric connection, the meter installed in the premises of the petitioner's company has not been working properly and the petitioner has made a complaint in this regard on 11.07.2022. However, the electricity bill of Rs. 17,16,178.00/- has been generated against the petitioner and his electricity has been disconnected on 25.07.2022. The petitioner has made a representation to the Executive Engineer, which has remained pending till date. Hence this petition.

4. Under the Electricity Supply Code, 2005, there is a provision under Chapter-VI for disputed bills and complaints regarding meter malfunctioning. The petitioner may make appropriate application under Chapter-VI before the Competent Authority in this regard. If such, application is made within two weeks from today, it shall be considered by the Executive Engineer within a further period of two weeks thereafter and appropriate orders be passed.

5. The petition stands ***disposed of***.

Order Date :- 2.9.2022

Darpan Sharma